

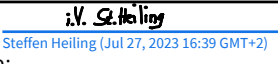


Cover Page

This Agreement incorporates the Bonterms Cloud Terms

By executing this Cover Page, Customer and Provider enter into an Agreement which incorporates the [Bonterms Cloud Terms \(Version 1.0\)](#) by this reference. The Agreement also includes the contents of this Cover Page, including the Key Terms, Attachments and any Additional Terms. Capitalized terms not defined in this Cover Page have the meanings given in the Bonterms Cloud Terms.

The parties will reference the Agreement as: "Cloud Agreement between Oro Labs, Inc. and Grünenthal GmbH dated as of 31/07/23"

Customer:	Provider:
 Signature: Steffen Heiling Name and Title: Procurement Lead Company: Grünenthal GmbH Notice Email Address: steffen.heiling@grunenthal.com Date: 27/07/2023	 Signature: Sudhir Bhojwani Name and Title: Sudhir Bhojwani, CEO Company: Oro Labs, Inc. Notice Email Address: sudhir@orolabs.ai Date: 7/26/2023

KEY TERMS

Overview	ORO Supplier Directory & Onboarding Workflow
Effective Date	31/07/2023
Governing Law & Courts	Governing Law: The laws of Germany Arbitration: All disputes arising out of or in connection with this present Agreement must be finally settled under the Rules of Arbitration of the International Chamber of Commerce by three (3) arbitrators appointed in accordance with the said Rules. The Emergency Arbitrator Provisions must not apply. Arbitration proceedings will be held in Düsseldorf, Germany and conducted in the English language. To the extent legally permissible, the Parties hereby agree that each Party is entitled to enforce the judgment upon that award at the courts of Düsseldorf, Germany.
Initial Order	N/A

ATTACHMENTS (link or attach)

The following Attachments (if any) are incorporated into the Agreement.

Acceptable Use Policy (AUP)	The AUP [attached to this Cover Page]
Support Policy	The Support Policy 2022 [attached to this Cover Page]
Service Level Agreement (SLA)	Bonterms Service Level Agreement (Version 1.0) - https://bonterms.com/wp-content/uploads/2022/07/Bonterms-Service-Level-Agreement-Version-1.0.pdf [as modified by the Additional Terms set forth below]
Bonterms Cloud Terms	Bonterms Cloud Terms (Version 1.0) - https://bonterms.com/wp-content/uploads/2022/10/Bonterms-Cloud-Terms-Version-1.0.pdf [as modified by the Additional Terms set forth below]



Bonterms Data Protection Addendum DPA Version 1.0	To Be Attached
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ADDITIONAL TERMS	
The following Additional Terms (if any) are added to the Agreement.	
1. Amendment of Section 8.3	Section 8.3 of the Bonterms Cloud Terms version 1.0 shall be amended, restated and replaced in its entirety with the following new Section 8.3: <u>Warranty Remedy</u> . Provider will use reasonable efforts to correct a verified breach of the Performance Warranty or Professional Services Warranty reported by Customer. If Provider fails to do so within 30 days after Customer's warranty report (" Fix Period "), then Customer may terminate the Order as relates to the non-conforming Cloud Service or Professional Services, in which case Provider will refund to Customer any pre-paid, unused fees for the terminated portion of the Subscription Term (for the Performance Warranty) or for the non-conforming Professional Services (for the Professional Services Warranty). To receive these remedies, Customer must report a breach of warranty in reasonable detail within 30 days after discovering the issue in the Cloud Service or 30 days after delivery of the relevant Professional Services (" Claim Period "). These procedures are Customer's exclusive remedies and Provider's sole liability for breach of the Performance Warranty or Professional Services Warranty.
2. New Provision Making Provider subject to Customer's Business Partner Code – added to Bonterms Version 1.0 – 22.16	The following Section 22.16 shall be added to the Bonterms Cloud Terms version 1.0 as the new Section 22.16: "Section 22.16. Business Partner Code. Provider accept's Customer's Business Partner Code of Conduct available a https://www.grunenthal.com/en/responsibility/compliance-ethics-and-transparency/#compliance ("CoC") and shall ensure that Provider and its employees provide services in compliance with the CoC."
3. Amendment of Section 18.2 of the Bonterms Cloudterms Version 1.0 – replacement in full	Section 18.2 of the Bonterms Cloud Terms version 1.0 shall be amended, restated and replaced in its entirety with the following new Section 18.2: Permitted Disclosures. The recipient may disclose Confidential Information to its affiliates (according to §15 AktG) , employees, agents, contractors and other representatives having a legitimate need to know (including, for Provider, the subcontractors referenced in Section 22.10), provided it remains responsible for their compliance with this Section 18 and they are bound to confidentiality obligations no less protective than this Section 18."
4. Amendment of Section 16:	In deviation from Section 16.5 of the Bonterms Cloud Terms, "General Cap" shall mean the greater of (i) the amounts paid or payable by Customer to Provider under this Agreement in the 12 months immediately preceding the first incident giving rise to liability or (ii) the applicable maximum insurance cap as set out below: ORO provides the following insurance levels: • Employer's Liability - \$2,000,000; • Commercial General Liability – per occurrence limit of \$2,000,000 • Privacy and Network Security (Cyber Liability) coverage with limits of at least five million dollars (\$5,000,000) • Umbrella Liability –combined single limit of at least \$2,000,000.
5. Amendment of Section 22.7	Section 22.7 of the Bonterms Cloud Terms version 1.0 shall be amended, restated and replaced in its entirety by the following new Section 22.7: Operational Changes. With notice to Customer, Provider may modify the Support Policy , SLA or Security Measures to reflect new features or

[illegible]



Acceptable Use Policy Attachment

This Acceptable Use Policy (“**AUP**”) sets forth rules that apply to the use of any of Provider’s Cloud Services by Customer (“**you**”). If referenced by the parties on their Cover Page, this AUP operates as an Attachment to an Agreement created using the Bonterms Cloud Terms. Capitalized terms not defined in this AUP have the meanings given in the Bonterms Cloud Terms.

- **Content Restrictions.** You will not upload, store, post or transmit content that:
 - Is obscene, defamatory, deceptive, harassing, threatening, hateful or discriminatory;
 - Violates anyone else’s intellectual property, privacy, publicity or other rights;
 - Violates applicable laws or regulations; or
 - Contains viruses, malware, malicious code or similar harmful materials.
- **Prohibited Conduct.** You will not:
 - Engage in deceptive or illegal activities (including, “spoofing”, “phishing” or pyramid or similar schemes);
 - Transmit spam or other unsolicited communications to other users;
 - Publish benchmark or performance information about the Cloud Service without our consent;
 - Use the Cloud Service in violation of data, privacy or other applicable laws or regulations;
 - Use the Cloud Service to engage in, promote, support or facilitate hateful, discriminatory or violent activities, whether online or offline; or
- **No Disruption.** You will not:
 - Access the Cloud Service through means we did not authorize (for instance, scraping, crawling or penetration testing);
 - Disable or interfere with the Cloud Service or circumvent any of our security or access controls; or
 - Try to access other users’ data or accounts without their express permission.
- **Others.** You will not permit or encourage others to commit any of the actions above.

We may monitor compliance with this AUP and investigate any violations. If we determine that you or your content violates this AUP, we may remove or suspend access to your content or invoke our suspension rights under the Agreement (see Section 13 of the Bonterms Cloud Terms (Suspension)).

We may report any activity that we suspect violates any law or regulation to law enforcement officials, and cooperate with them to investigate and prosecute illegal conduct.



Support Policy Attachment

(for Bonterms Cloud Terms)

Provider offers Support for the Cloud Service in accordance with the following terms ("**Support Policy**"). If referenced by the parties on their Cover Page, this Support Policy operates as an Attachment to an Agreement created using the Bonterms Cloud Terms. Capitalized terms not defined in this Support Policy have the meanings given in the Cloud Terms & Conditions.

- 1. Support Hours. Support is provided during Provider's normal business hours of 8 to 5 PM, Monday through Friday (except U.S. holidays** which includes the following observed business days: New Years Day & January 2; Birth of Martin Luther King; Presidents Day; Memorial Day; Juneteenth; Independence Day; Labor Day; Columbus Day; Veterans Day; Thanksgiving Day and Day After, Christmas Day)
- 2. Incident Submission and Customer Cooperation.** Customer may report errors or abnormal behavior of the Cloud Service ("**Incidents**") by contacting Provider at the applicable email or phone number specified in the table below. Customer will provide information and cooperation to Provider as reasonably required for Provider to provide Support. This includes providing the following information to Provider regarding the Incident:
 - Aspects of the Cloud Service that are unavailable or not functioning correctly
 - Incident's impact on users
 - Start time of Incident
 - List of steps to reproduce Incident
 - Relevant log files or data
 - Wording of any error message
 - Incident ID# (when specified by Provider)
- 3. Incident Response.** Provider's Support personnel will assign a priority level ("**Priority Level**") to each Incident and seek to provide responses in accordance with the table below.

INCIDENT SEVERITY	DESCRIPTION	RESPONSE TIMES	EXAMPLES
S1	Incidents that result in, or have the potential to cause, significant impact to the confidentiality, availability, or integrity of Oro Labs information.	1 hour (seven days per week)	The compromise of PII information, corporate or customer information, violations of law, and long- term system outages that may cause significant impact to Oro Labs or its customers.
S2	Incidents that result in isolated loss of system availability or data integrity	4 hours (seven days per week)	System crashes, brief outages, and an inadvertent loss or deletion of records.
S3	Incidents that result in minimal impact to systems and services.	3 business days (5 days per week)	Spam and locally contained malware infections

- 4. Exclusions.** Provider will have no obligation to provide Support to the extent an Incident arises from: (a) misuse or unauthorized modifications to the Cloud Service, (b) Third-Party Platforms or other third-party systems, (c) Trials and Betas or other free or evaluation use or (d) Professional Services deliverables.

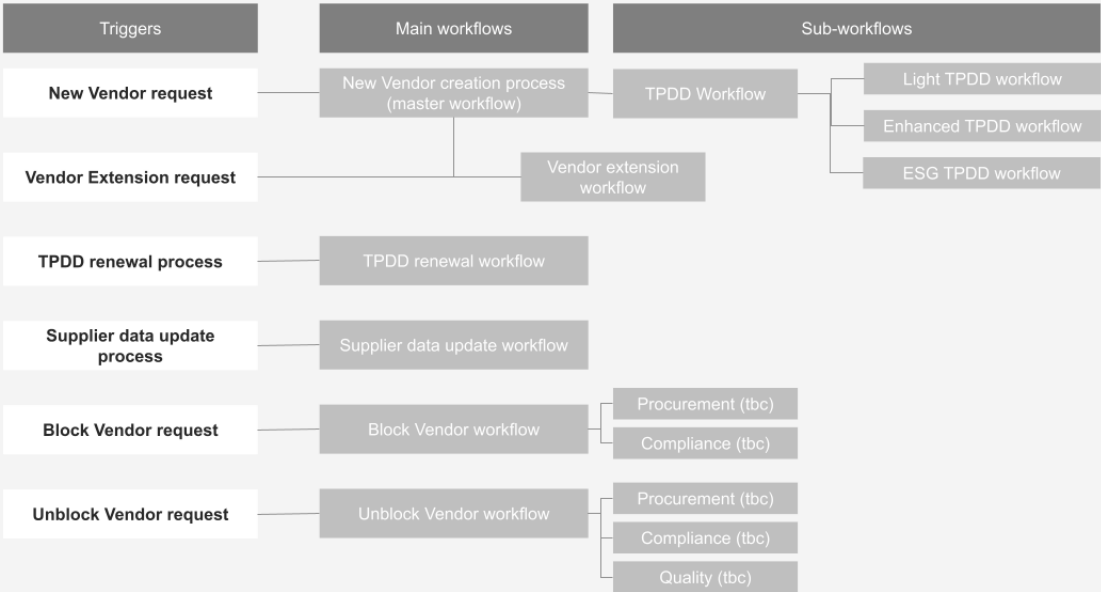


[Attach DPA Here](#)



Appendix 1

Appendix 1 – Overview of workflows to be set up as part of implementation



STANDARD CONTRACTUAL CLAUSES

Controller to Processor

SECTION I

Clause 1

Purpose and scope

- (a) The purpose of these standard contractual clauses is to ensure compliance with the requirements of Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (General Data Protection Regulation) ⁽¹⁾ for the transfer of data to a third country.
- (b) The Parties:
 - (i) the natural or legal person(s), public authority/ies, agency/ies or other body/ies (hereinafter ‘entity/ies’) transferring the personal data, as listed in Annex I.A (hereinafter each ‘data exporter’), and
 - (ii) the entity/ies in a third country receiving the personal data from the data exporter, directly or indirectly via another entity also Party to these Clauses, as listed in Annex I.A (hereinafter each ‘data importer’)have agreed to these standard contractual clauses (hereinafter: ‘Clauses’).
- (c) These Clauses apply with respect to the transfer of personal data as specified in Annex I.B.
- (d) The Appendix to these Clauses containing the Annexes referred to therein forms an integral part of these Clauses.

Clause 2

Effect and invariability of the Clauses

- (a) These Clauses set out appropriate safeguards, including enforceable data subject rights and effective legal remedies, pursuant to Article 46(1) and Article 46(2)(c) of Regulation

¹ Where the data exporter is a processor subject to Regulation (EU) 2016/679 acting on behalf of a Union institution or body as controller, reliance on these Clauses when engaging another processor (sub-processing) not subject to Regulation (EU) 2016/679 also ensures compliance with Article 29(4) of Regulation (EU) 2018/1725 of the European Parliament and of the Council of 23 October 2018 on the protection of natural persons with regard to the processing of personal data by the Union institutions, bodies, offices and agencies and on the free movement of such data, and repealing Regulation (EC) No 45/2001 and Decision No 1247/2002/EC ([OJ L 295, 21.11.2018, p. 39](#)), to the extent these Clauses and the data protection obligations as set out in the contract or other legal act between the controller and the processor pursuant to Article 29(3) of Regulation (EU) 2018/1725 are aligned. This will in particular be the case where the controller and processor rely on the standard contractual clauses included in Decision 2021/915.

(EU) 2016/679 and, with respect to data transfers from controllers to processors and/or processors to processors, standard contractual clauses pursuant to Article 28(7) of Regulation (EU) 2016/679, provided they are not modified, except to select the appropriate Module(s) or to add or update information in the Appendix. This does not prevent the Parties from including the standard contractual clauses laid down in these Clauses in a wider contract and/or to add other clauses or additional safeguards, provided that they do not contradict, directly or indirectly, these Clauses or prejudice the fundamental rights or freedoms of data subjects.

- (b) These Clauses are without prejudice to obligations to which the data exporter is subject by virtue of Regulation (EU) 2016/679.

Clause 3

Third-party beneficiaries

- (a) Data subjects may invoke and enforce these Clauses, as third-party beneficiaries, against the data exporter and/or data importer, with the following exceptions:
 - (i) Clause 1, Clause 2, Clause 3, Clause 6, Clause 7;
 - (ii) Clause 8.1(b), 8.9(a), (c), (d) and (e);
 - (iii) Clause 9(a), (c), (d) and (e);
 - (iv) Clause 12(a), (d) and (f);
 - (v) Clause 13;
 - (vi) Clause 15.1(c), (d) and (e);
 - (vii) Clause 16(e);
 - (viii) Clause 18(a) and (b).
- (b) Paragraph (a) is without prejudice to rights of data subjects under Regulation (EU) 2016/679.

Clause 4

Interpretation

- (a) Where these Clauses use terms that are defined in Regulation (EU) 2016/679, those terms shall have the same meaning as in that Regulation.
- (b) These Clauses shall be read and interpreted in the light of the provisions of Regulation (EU) 2016/679.
- (c) These Clauses shall not be interpreted in a way that conflicts with rights and obligations provided for in Regulation (EU) 2016/679.

Clause 5

Hierarchy

In the event of a contradiction between these Clauses and the provisions of related agreements between the Parties, existing at the time these Clauses are agreed or entered into thereafter, these Clauses shall prevail.

Clause 6**Description of the transfer(s)**

The details of the transfer(s), and in particular the categories of personal data that are transferred and the purpose(s) for which they are transferred, are specified in Annex I.B.

Clause 7 – Optional**Docking clause**

- (a) An entity that is not a Party to these Clauses may, with the agreement of the Parties, accede to these Clauses at any time, either as a data exporter or as a data importer, by completing the Appendix and signing Annex I.A.
- (b) Once it has completed the Appendix and signed Annex I.A, the acceding entity shall become a Party to these Clauses and have the rights and obligations of a data exporter or data importer in accordance with its designation in Annex I.A.
- (c) The acceding entity shall have no rights or obligations arising under these Clauses from the period prior to becoming a Party.

SECTION II – OBLIGATIONS OF THE PARTIES***Clause 8*****Data protection safeguards**

The data exporter warrants that it has used reasonable efforts to determine that the data importer is able, through the implementation of appropriate technical and organisational measures, to satisfy its obligations under these Clauses.

8.1 Instructions

- (a) The data importer shall process the personal data only on documented instructions from the data exporter. The data exporter may give such instructions throughout the duration of the contract.
- (b) The data importer shall immediately inform the data exporter if it is unable to follow those instructions.

8.2 Purpose limitation

The data importer shall process the personal data only for the specific purpose(s) of the transfer, as set out in Annex I.B, unless on further instructions from the data exporter.

8.3 Transparency

On request, the data exporter shall make a copy of these Clauses, including the Appendix as completed by the Parties, available to the data subject free of charge. To the extent necessary to protect business secrets or other confidential information, including the measures described in Annex II and personal data, the data exporter may redact part of the text of the Appendix to these Clauses prior to sharing a copy, but shall provide a meaningful summary where the data subject would otherwise not be able to understand the its content or exercise his/her rights. On request, the Parties shall provide the data subject with the reasons for the redactions, to the extent possible without revealing the redacted information. This Clause is without prejudice to the obligations of the data exporter under Articles 13 and 14 of Regulation (EU) 2016/679.

8.4 Accuracy

If the data importer becomes aware that the personal data it has received is inaccurate, or has become outdated, it shall inform the data exporter without undue delay. In this case, the data importer shall cooperate with the data exporter to erase or rectify the data.

8.5 Duration of processing and erasure or return of data

Processing by the data importer shall only take place for the duration specified in Annex I.B. After the end of the provision of the processing services, the data importer shall, at the choice of the data exporter, delete all personal data processed on behalf of the data exporter and certify to the data exporter that it has done so, or return to the data exporter all personal data processed on its behalf and delete existing copies. Until the data is deleted or returned, the data importer shall continue to ensure compliance with these Clauses. In case of local laws applicable to the data importer that prohibit return or deletion of the personal data, the data importer warrants that it will continue to ensure compliance with these Clauses and will only process it to the extent and for as long as required under that local law. This is without prejudice to Clause 14, in particular the requirement for the data importer under Clause 14(e) to notify the data exporter throughout the duration of the contract if it has reason to believe that it is or has become subject to laws or practices not in line with the requirements under Clause 14(a).

8.6 Security of processing

- (a) The data importer and, during transmission, also the data exporter shall implement appropriate technical and organisational measures to ensure the security of the data, including protection against a breach of security leading to accidental or unlawful destruction, loss, alteration, unauthorised disclosure or access to that data (hereinafter 'personal data breach'). In assessing the appropriate level of security, the Parties shall take due account of the state of the art, the costs of implementation, the nature, scope, context and purpose(s) of processing and the risks involved in the processing for the data subjects. The Parties shall in particular consider having recourse to encryption or pseudonymisation, including during transmission, where the purpose of processing can be fulfilled in that manner. In case of pseudonymisation, the additional information for attributing the personal data to a specific data subject shall, where possible, remain under

the exclusive control of the data exporter. In complying with its obligations under this paragraph, the data importer shall at least implement the technical and organisational measures specified in Annex II. The data importer shall carry out regular checks to ensure that these measures continue to provide an appropriate level of security.

- (b) The data importer shall grant access to the personal data to members of its personnel only to the extent strictly necessary for the implementation, management and monitoring of the contract. It shall ensure that persons authorised to process the personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality.
- (c) In the event of a personal data breach concerning personal data processed by the data importer under these Clauses, the data importer shall take appropriate measures to address the breach, including measures to mitigate its adverse effects. The data importer shall also notify the data exporter without undue delay after having become aware of the breach. Such notification shall contain the details of a contact point where more information can be obtained, a description of the nature of the breach (including, where possible, categories and approximate number of data subjects and personal data records concerned), its likely consequences and the measures taken or proposed to address the breach including, where appropriate, measures to mitigate its possible adverse effects. Where, and in so far as, it is not possible to provide all information at the same time, the initial notification shall contain the information then available and further information shall, as it becomes available, subsequently be provided without undue delay.
- (d) The data importer shall cooperate with and assist the data exporter to enable the data exporter to comply with its obligations under Regulation (EU) 2016/679, in particular to notify the competent supervisory authority and the affected data subjects, taking into account the nature of processing and the information available to the data importer.

8.7 Sensitive data

Where the transfer involves personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, genetic data, or biometric data for the purpose of uniquely identifying a natural person, data concerning health or a person's sex life or sexual orientation, or data relating to criminal convictions and offences (hereinafter 'sensitive data'), the data importer shall apply the specific restrictions and/or additional safeguards described in Annex I.B.

8.8 Onward transfers

The data importer shall only disclose the personal data to a third party on documented instructions from the data exporter. In addition, the data may only be disclosed to a third party located outside the European Union ⁽²⁾ (in the same country as the data importer or in another

² The Agreement on the European Economic Area (EEA Agreement) provides for the extension of the European Union's internal market to the three EEA States Iceland, Liechtenstein and Norway. The Union data protection

third country, hereinafter ‘onward transfer’) if the third party is or agrees to be bound by these Clauses, under the appropriate Module, or if:

- (i) the onward transfer is to a country benefiting from an adequacy decision pursuant to Article 45 of Regulation (EU) 2016/679 that covers the onward transfer;
- (ii) the third party otherwise ensures appropriate safeguards pursuant to Articles 46 or 47 Regulation of (EU) 2016/679 with respect to the processing in question;
- (iii) the onward transfer is necessary for the establishment, exercise or defence of legal claims in the context of specific administrative, regulatory or judicial proceedings; or
- (iv) the onward transfer is necessary in order to protect the vital interests of the data subject or of another natural person.

Any onward transfer is subject to compliance by the data importer with all the other safeguards under these Clauses, in particular purpose limitation.

8.9 Documentation and compliance

- (a) The data importer shall promptly and adequately deal with enquiries from the data exporter that relate to the processing under these Clauses.
- (b) The Parties shall be able to demonstrate compliance with these Clauses. In particular, the data importer shall keep appropriate documentation on the processing activities carried out on behalf of the data exporter.
- (c) The data importer shall make available to the data exporter all information necessary to demonstrate compliance with the obligations set out in these Clauses and at the data exporter’s request, allow for and contribute to audits of the processing activities covered by these Clauses, at reasonable intervals or if there are indications of non-compliance. In deciding on a review or audit, the data exporter may take into account relevant certifications held by the data importer.
- (d) The data exporter may choose to conduct the audit by itself or mandate an independent auditor. Audits may include inspections at the premises or physical facilities of the data importer and shall, where appropriate, be carried out with reasonable notice.
- (e) The Parties shall make the information referred to in paragraphs (b) and (c), including the results of any audits, available to the competent supervisory authority on request.

Clause 9

Use of sub-processors

legislation, including Regulation (EU) 2016/679, is covered by the EEA Agreement and has been incorporated into Annex XI thereto. Therefore, any disclosure by the data importer to a third party located in the EEA does not qualify as an onward transfer for the purpose of these Clauses.

- (a) **SPECIFIC PRIOR AUTHORISATION** The data importer shall not sub-contract any of its processing activities performed on behalf of the data exporter under these Clauses to a sub-processor without the data exporter's prior specific written authorisation. The data importer shall submit the request for specific authorisation at least 30 days prior to the engagement of the sub-processor, together with the information necessary to enable the data exporter to decide on the authorisation. The list of sub-processors already authorised by the data exporter can be found in Annex III. The Parties shall keep Annex III up to date.
- (b) Where the data importer engages a sub-processor to carry out specific processing activities (on behalf of the data exporter), it shall do so by way of a written contract that provides for, in substance, the same data protection obligations as those binding the data importer under these Clauses, including in terms of third-party beneficiary rights for data subjects.⁽³⁾ The Parties agree that, by complying with this Clause, the data importer fulfils its obligations under Clause 8.8. The data importer shall ensure that the sub-processor complies with the obligations to which the data importer is subject pursuant to these Clauses.
- (c) The data importer shall provide, at the data exporter's request, a copy of such a sub-processor agreement and any subsequent amendments to the data exporter. To the extent necessary to protect business secrets or other confidential information, including personal data, the data importer may redact the text of the agreement prior to sharing a copy.
- (d) The data importer shall remain fully responsible to the data exporter for the performance of the sub-processor's obligations under its contract with the data importer. The data importer shall notify the data exporter of any failure by the sub-processor to fulfil its obligations under that contract.
- (e) The data importer shall agree a third-party beneficiary clause with the sub-processor whereby – in the event the data importer has factually disappeared, ceased to exist in law or has become insolvent – the data exporter shall have the right to terminate the sub-processor contract and to instruct the sub-processor to erase or return the personal data.

Clause 10

Data subject rights

- (a) The data importer shall promptly notify the data exporter of any request it has received from a data subject. It shall not respond to that request itself unless it has been authorised to do so by the data exporter.

³ This requirement may be satisfied by the sub-processor acceding to these Clauses under the appropriate Module, in accordance with Clause 7.

- (b) The data importer shall assist the data exporter in fulfilling its obligations to respond to data subjects' requests for the exercise of their rights under Regulation (EU) 2016/679. In this regard, the Parties shall set out in Annex II the appropriate technical and organisational measures, taking into account the nature of the processing, by which the assistance shall be provided, as well as the scope and the extent of the assistance required.
- (c) In fulfilling its obligations under paragraphs (a) and (b), the data importer shall comply with the instructions from the data exporter.

Clause 11

Redress

- (a) The data importer shall inform data subjects in a transparent and easily accessible format, through individual notice or on its website, of a contact point authorised to handle complaints. It shall deal promptly with any complaints it receives from a data subject.
- (b) In case of a dispute between a data subject and one of the Parties as regards compliance with these Clauses, that Party shall use its best efforts to resolve the issue amicably in a timely fashion. The Parties shall keep each other informed about such disputes and, where appropriate, cooperate in resolving them.
- (c) Where the data subject invokes a third-party beneficiary right pursuant to Clause 3, the data importer shall accept the decision of the data subject to:
 - (i) lodge a complaint with the supervisory authority in the Member State of his/her habitual residence or place of work, or the competent supervisory authority pursuant to Clause 13;
 - (ii) refer the dispute to the competent courts within the meaning of Clause 18.
- (d) The Parties accept that the data subject may be represented by a not-for-profit body, organisation or association under the conditions set out in Article 80(1) of Regulation (EU) 2016/679.
- (e) The data importer shall abide by a decision that is binding under the applicable EU or Member State law.
- (f) The data importer agrees that the choice made by the data subject will not prejudice his/her substantive and procedural rights to seek remedies in accordance with applicable laws.

Clause 12

Liability

- (a) Each Party shall be liable to the other Party/ies for any damages it causes the other Party/ies by any breach of these Clauses.
- (b) The data importer shall be liable to the data subject, and the data subject shall be entitled to receive compensation, for any material or non-material damages the data importer or its sub-processor causes the data subject by breaching the third-party beneficiary rights under these Clauses.
- (c) Notwithstanding paragraph (b), the data exporter shall be liable to the data subject, and the data subject shall be entitled to receive compensation, for any material or non-material damages the data exporter or the data importer (or its sub-processor) causes the data subject by breaching the third-party beneficiary rights under these Clauses. This is without prejudice to the liability of the data exporter and, where the data exporter is a processor acting on behalf of a controller, to the liability of the controller under Regulation (EU) 2016/679 or Regulation (EU) 2018/1725, as applicable.
- (d) The Parties agree that if the data exporter is held liable under paragraph (c) for damages caused by the data importer (or its sub-processor), it shall be entitled to claim back from the data importer that part of the compensation corresponding to the data importer's responsibility for the damage.
- (e) Where more than one Party is responsible for any damage caused to the data subject as a result of a breach of these Clauses, all responsible Parties shall be jointly and severally liable and the data subject is entitled to bring an action in court against any of these Parties.
- (f) The Parties agree that if one Party is held liable under paragraph (e), it shall be entitled to claim back from the other Party/ies that part of the compensation corresponding to its/their responsibility for the damage.
- (g) The data importer may not invoke the conduct of a sub-processor to avoid its own liability.

Clause 13

Supervision

- (a) The supervisory authority with responsibility for ensuring compliance by the data exporter with Regulation (EU) 2016/679 as regards the data transfer, as indicated in Annex I.C, shall act as competent supervisory authority.
- (b) The data importer agrees to submit itself to the jurisdiction of and cooperate with the competent supervisory authority in any procedures aimed at ensuring compliance with these Clauses. In particular, the data importer agrees to respond to enquiries, submit to audits and comply with the measures adopted by the supervisory authority, including

remedial and compensatory measures. It shall provide the supervisory authority with written confirmation that the necessary actions have been taken.

SECTION III – LOCAL LAWS AND OBLIGATIONS IN CASE OF ACCESS BY PUBLIC AUTHORITIES

Clause 14

Local laws and practices affecting compliance with the Clauses

- (a) The Parties warrant that they have no reason to believe that the laws and practices in the third country of destination applicable to the processing of the personal data by the data importer, including any requirements to disclose personal data or measures authorising access by public authorities, prevent the data importer from fulfilling its obligations under these Clauses. This is based on the understanding that laws and practices that respect the essence of the fundamental rights and freedoms and do not exceed what is necessary and proportionate in a democratic society to safeguard one of the objectives listed in Article 23(1) of Regulation (EU) 2016/679, are not in contradiction with these Clauses.
- (b) The Parties declare that in providing the warranty in paragraph (a), they have taken due account in particular of the following elements:
 - (i) the specific circumstances of the transfer, including the length of the processing chain, the number of actors involved and the transmission channels used; intended onward transfers; the type of recipient; the purpose of processing; the categories and format of the transferred personal data; the economic sector in which the transfer occurs; the storage location of the data transferred;
 - (ii) the laws and practices of the third country of destination– including those requiring the disclosure of data to public authorities or authorising access by such authorities – relevant in light of the specific circumstances of the transfer, and the applicable limitations and safeguards ⁽⁴⁾;

⁴ As regards the impact of such laws and practices on compliance with these Clauses, different elements may be considered as part of an overall assessment. Such elements may include relevant and documented practical experience with prior instances of requests for disclosure from public authorities, or the absence of such requests, covering a sufficiently representative time-frame. This refers in particular to internal records or other documentation, drawn up on a continuous basis in accordance with due diligence and certified at senior management level, provided that this information can be lawfully shared with third parties. Where this practical experience is relied upon to conclude that the data importer will not be prevented from complying with these Clauses, it needs to be supported by other relevant, objective elements, and it is for the Parties to consider carefully whether these elements together carry sufficient weight, in terms of their reliability and representativeness, to support this conclusion. In particular, the Parties have to take into account whether their practical experience is corroborated and not contradicted by publicly available or otherwise accessible, reliable information on the existence or absence of requests within the same sector and/or the application of the law in practice, such as case law and reports by independent oversight bodies.

- (iii) any relevant contractual, technical or organisational safeguards put in place to supplement the safeguards under these Clauses, including measures applied during transmission and to the processing of the personal data in the country of destination.
- (c) The data importer warrants that, in carrying out the assessment under paragraph (b), it has made its best efforts to provide the data exporter with relevant information and agrees that it will continue to cooperate with the data exporter in ensuring compliance with these Clauses.
- (d) The Parties agree to document the assessment under paragraph (b) and make it available to the competent supervisory authority on request.
- (e) The data importer agrees to notify the data exporter promptly if, after having agreed to these Clauses and for the duration of the contract, it has reason to believe that it is or has become subject to laws or practices not in line with the requirements under paragraph (a), including following a change in the laws of the third country or a measure (such as a disclosure request) indicating an application of such laws in practice that is not in line with the requirements in paragraph (a).
- (f) Following a notification pursuant to paragraph (e), or if the data exporter otherwise has reason to believe that the data importer can no longer fulfil its obligations under these Clauses, the data exporter shall promptly identify appropriate measures (e.g. technical or organisational measures to ensure security and confidentiality) to be adopted by the data exporter and/or data importer to address the situation. The data exporter shall suspend the data transfer if it considers that no appropriate safeguards for such transfer can be ensured, or if instructed by the competent supervisory authority to do so. In this case, the data exporter shall be entitled to terminate the contract, insofar as it concerns the processing of personal data under these Clauses. If the contract involves more than two Parties, the data exporter may exercise this right to termination only with respect to the relevant Party, unless the Parties have agreed otherwise. Where the contract is terminated pursuant to this Clause, Clause 16(d) and (e) shall apply.

Clause 15

Obligations of the data importer in case of access by public authorities

15.1 Notification

- (a) The data importer agrees to notify the data exporter and, where possible, the data subject promptly (if necessary with the help of the data exporter) if it:
 - (i) receives a legally binding request from a public authority, including judicial authorities, under the laws of the country of destination for the disclosure of personal data transferred pursuant to these Clauses; such notification shall include information about the personal data requested, the requesting authority, the legal basis for the request and the response provided; or

- (ii) becomes aware of any direct access by public authorities to personal data transferred pursuant to these Clauses in accordance with the laws of the country of destination; such notification shall include all information available to the importer.
- (b) If the data importer is prohibited from notifying the data exporter and/or the data subject under the laws of the country of destination, the data importer agrees to use its best efforts to obtain a waiver of the prohibition, with a view to communicating as much information as possible, as soon as possible. The data importer agrees to document its best efforts in order to be able to demonstrate them on request of the data exporter.
- (c) Where permissible under the laws of the country of destination, the data importer agrees to provide the data exporter, at regular intervals for the duration of the contract, with as much relevant information as possible on the requests received (in particular, number of requests, type of data requested, requesting authority/ies, whether requests have been challenged and the outcome of such challenges, etc.).
- (d) The data importer agrees to preserve the information pursuant to paragraphs (a) to (c) for the duration of the contract and make it available to the competent supervisory authority on request.
- (e) Paragraphs (a) to (c) are without prejudice to the obligation of the data importer pursuant to Clause 14(e) and Clause 16 to inform the data exporter promptly where it is unable to comply with these Clauses.

15.2 Review of legality and data minimisation

- (a) The data importer agrees to review the legality of the request for disclosure, in particular whether it remains within the powers granted to the requesting public authority, and to challenge the request if, after careful assessment, it concludes that there are reasonable grounds to consider that the request is unlawful under the laws of the country of destination, applicable obligations under international law and principles of international comity. The data importer shall, under the same conditions, pursue possibilities of appeal. When challenging a request, the data importer shall seek interim measures with a view to suspending the effects of the request until the competent judicial authority has decided on its merits. It shall not disclose the personal data requested until required to do so under the applicable procedural rules. These requirements are without prejudice to the obligations of the data importer under Clause 14(e).
- (b) The data importer agrees to document its legal assessment and any challenge to the request for disclosure and, to the extent permissible under the laws of the country of destination, make the documentation available to the data exporter. It shall also make it available to the competent supervisory authority on request.

- (c) The data importer agrees to provide the minimum amount of information permissible when responding to a request for disclosure, based on a reasonable interpretation of the request.

SECTION IV – FINAL PROVISIONS

Clause 16

Non-compliance with the Clauses and termination

- (a) The data importer shall promptly inform the data exporter if it is unable to comply with these Clauses, for whatever reason.
- (b) In the event that the data importer is in breach of these Clauses or unable to comply with these Clauses, the data exporter shall suspend the transfer of personal data to the data importer until compliance is again ensured or the contract is terminated. This is without prejudice to Clause 14(f).
- (c) The data exporter shall be entitled to terminate the contract, insofar as it concerns the processing of personal data under these Clauses, where:
 - (i) the data exporter has suspended the transfer of personal data to the data importer pursuant to paragraph (b) and compliance with these Clauses is not restored within a reasonable time and in any event within one month of suspension;
 - (ii) the data importer is in substantial or persistent breach of these Clauses; or
 - (iii) the data importer fails to comply with a binding decision of a competent court or supervisory authority regarding its obligations under these Clauses.

In these cases, it shall inform the competent supervisory authority of such non-compliance. Where the contract involves more than two Parties, the data exporter may exercise this right to termination only with respect to the relevant Party, unless the Parties have agreed otherwise.

- (d) Personal data that has been transferred prior to the termination of the contract pursuant to paragraph (c) shall at the choice of the data exporter immediately be returned to the data exporter or deleted in its entirety. The same shall apply to any copies of the data. The data importer shall certify the deletion of the data to the data exporter. Until the data is deleted or returned, the data importer shall continue to ensure compliance with these Clauses. In case of local laws applicable to the data importer that prohibit the return or deletion of the transferred personal data, the data importer warrants that it will continue to ensure compliance with these Clauses and will only process the data to the extent and for as long as required under that local law.
- (e) Either Party may revoke its agreement to be bound by these Clauses where (i) the European Commission adopts a decision pursuant to Article 45(3) of Regulation (EU) 2016/679 that covers the transfer of personal data to which these Clauses apply; or (ii)

Regulation (EU) 2016/679 becomes part of the legal framework of the country to which the personal data is transferred. This is without prejudice to other obligations applying to the processing in question under Regulation (EU) 2016/679.

Clause 17

Governing law

These Clauses shall be governed by the law of one of the EU Member States, provided such law allows for third-party beneficiary rights. The Parties agree that this shall be the law of the Federal Republic of Germany.

Clause 18

Choice of forum and jurisdiction

- (a) Any dispute arising from these Clauses shall be resolved by the courts of an EU Member State.
- (b) The Parties agree that those shall be the courts of the Federal Republic of Germany.
- (c) A data subject may also bring legal proceedings against the data exporter and/or data importer before the courts of the Member State in which he/she has his/her habitual residence.
- (d) The Parties agree to submit themselves to the jurisdiction of such courts.

APPENDIX

EXPLANATORY NOTE:

It must be possible to clearly distinguish the information applicable to each transfer or category of transfers and, in this regard, to determine the respective role(s) of the Parties as data exporter(s) and/or data importer(s). This does not necessarily require completing and signing separate appendices for each transfer/category of transfers and/or contractual relationship, where this transparency can be achieved through one appendix. However, where necessary to ensure sufficient clarity, separate appendices should be used.

ANNEX I

A. LIST OF PARTIES

Data exporter(s): *[Identity and contact details of the data exporter(s) and, where applicable, of its/their data protection officer and/or representative in the European Union]*

Name: Grünenthal GmbH

Address: Zieglerstr. 6 in 52078 Aachen – Germany

Contact person's name, position and contact details: dataprivacy.de@grunenthal.com

Activities relevant to the data transferred under these Clauses:

- Oro Labs is a provider of a multi-tenant SaaS platform to help customers like Grünenthal manage procurement workflows and vendor management activities.

Signature and date:

S. Heiling
Steffen Heiling (Jul 27, 2023 16:39 GMT+2)



Role (controller/processor): Controller

Data importer(s): *[Identity and contact details of the data importer(s), including any contact person with responsibility for data protection]*

Name: Oro Labs, Inc

Address: 2100 Geng Road, Suite 210 #118, Palo Alto, CA 94303

Contact person's name, position and contact details: Sudhir Bhojwani, Co-founder & CEO, sudhir.bhojwani@orolabs.ai

Activities relevant to the data transferred under these Clauses:

- Oro Labs is a provider of a multi-tenant SaaS platform to help customers like Grünenthal manage procurement workflows and vendor management activities.

Signature and date:

Sudhir Bhojwani
DocuSigned by:
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7/26/2023

Role (controller/processor): Processor

B. DESCRIPTION OF TRANSFER

Categories of data subjects whose personal data is transferred

Vendors including third-parties such as HCPs and independent contractors.

Categories of personal data transferred

ORO captures business email & business user name, phone number. ORO can capture Tax Identifier, Bank & Payment related information if desired by Grunenthal. Grunenthal may also collect information from its vendors in its questionnaires including but not limited to supplier ownership data etc. Such data is kept inside the ORO system.

Sensitive data transferred (if applicable) and applied restrictions or safeguards that fully take into consideration the nature of the data and the risks involved, such as for instance strict purpose limitation, access restrictions (including access only for staff having followed specialised training), keeping a record of access to the data, restrictions for onward transfers or additional security measures.

We have access controls in place to restrict access to PII. We also follow the principle of least privilege.

The frequency of the transfer (e.g. whether the data is transferred on a one-off or continuous basis).

Continuous basis

Nature of the processing

We are processing vendor and other third-party information provided by Grunenthal and Grunenthal's vendor for purposes of doing business with Grunenthal. This includes email, vendor tax identification, vendor business address and other identifiers and vendor payment information including bank details.

Purpose(s) of the data transfer and further processing

Refer to above statement

The period for which the personal data will be retained, or, if that is not possible, the criteria used to determine that period

All active customer data shall be retained for as long as the customer continues to be an active customer of Oro Labs or unless the active customer has requested the deletion of data.

For transfers to (sub-) processors, also specify subject matter, nature and duration of the processing

Data is transferred to subprocessors for purposes of entity verification and entity payment verification of vendor subjects. We do not share data with subprocessors longer than is necessary or beyond the scope of our contract with our customers.

C. COMPETENT SUPERVISORY AUTHORITY

Identify the competent supervisory authority/ies in accordance with Clause 13

Landesbeauftragte für Datenschutz und Informationsfreiheit Nordrhein-Westfalen

ANNEX II

TECHNICAL AND ORGANISATIONAL MEASURES INCLUDING TECHNICAL AND ORGANISATIONAL MEASURES TO ENSURE THE SECURITY OF THE DATA

EXPLANATORY NOTE:

The technical and organizational measures must be described in specific (and not generic) terms. See also the general comment on the first page of the Appendix, in particular on the need to clearly indicate which measures apply to each transfer/set of transfers.

Description of the technical and organizational measures implemented by the data importer(s) (including any relevant certifications) to ensure an appropriate level of security, taking into account the nature, scope, context and purpose of the processing, and the risks for the rights and freedoms of natural persons.

[Examples of possible measures:

Measures of pseudonymisation and encryption of personal data

Measures for ensuring ongoing confidentiality, integrity, availability and resilience of processing systems and services

Measures for ensuring the ability to restore the availability and access to personal data in a timely manner in the event of a physical or technical incident

Processes for regularly testing, assessing and evaluating the effectiveness of technical and organizational measures in order to ensure the security of the processing

Measures for user identification and authorisation

Measures for the protection of data during transmission

Measures for the protection of data during storage

Measures for ensuring physical security of locations at which personal data are processed

Measures for ensuring events logging

Measures for ensuring system configuration, including default configuration

Measures for internal IT and IT security governance and management

Measures for certification/assurance of processes and products

Measures for ensuring data minimisation

Measures for ensuring data quality

Measures for ensuring limited data retention

Measures for ensuring accountability

Measures for allowing data portability and ensuring erasure]

For transfers to (sub-) processors, also describe the specific technical and organisational measures to be taken by the (sub-) processor to be able to provide assistance to the controller and, for transfers from a processor to a sub-processor, to the data exporter

...

Our security measures related to the above questions are well documented in our SOC2 Report. We can provide a copy of this report. The answers to the specific questions are provided below:

Measures of pseudonymisation and encryption of personal data

We encrypt sensitive personal data. Encryption technologies are used to protect communication and transmission of data over public networks and between systems. Oro Labs uses TLS 1.2 to encrypt data in transit and AES 256 bit encryption to secure data at rest

Measures for ensuring ongoing confidentiality, integrity, availability and resilience of processing systems and services

ORO uses a threat detection service to continuously monitor for malicious activity and unauthorized behavior in the production environment. Alerts are sent to the Ops Alerts email alias and critical and high-severity events are logged and tracked through resolution.

We perform a SOC2 Audit, disaster recovery testing and penetration testing annually.

Multiple availability zones are used for redundancy of critical resources in case of outages

Measures for ensuring the ability to restore the availability and access to personal data in a timely manner in the event of a physical or technical incident

Data in databases and object storage are redundantly stored and backups are performed on an ongoing basis and retained for twelve months. Backup restoration testing is performed on an annual basis to test the integrity and completeness of backup information. Disaster Recovery and Business Continuity plans (including restoration of backups) have been developed and are tested annually. Test results are reviewed and consequently, contingency plans are updated.

Processes for regularly testing, assessing and evaluating the effectiveness of technical and organizational measures in order to ensure the security of the processing

Application and infrastructure code changes are required to undergo security scanning and end-to-end integration testing prior to release to production. ORO's Engineering team also verifies that new code changes are run through a predefined series of automated tests without issue prior to each release. A penetration test is performed on an annual basis to identify security exploits. Issues identified are classified according to risk, analyzed and remediated in a timely manner

Measures for user identification and authorisation

Users log in through SSO which are MFA enabled. ORO enforces minimum password length, password complexity and MFA for user login to the cloud infrastructure, source code repository, CI/CD tool, and the ORO Supplier Platform.

Measures for the protection of data during transmission

ORO uses TLS 1.2 to encrypt data in transit

Measures for the protection of data during storage

ORO uses AES 256 bit encryption to secure data at rest

Measures for ensuring physical security of locations at which personal data are processed

This is not applicable to Oro Labs. ORO is entirely cloud-based and hosted on Amazon AWS. The physical security of the datacenters is the responsibility of AWS.

Measures for ensuring events logging

ORO uses logging tools to log, continuously monitor, and retain account activity related to user actions throughout the production environment. VPC flow logs, ELB access logs, and object storage access logs are enabled. Logs are stored encrypted, log file validation is enabled, and access to logs is restricted to those who require access to perform their job duties. The storage bucket where logs are stored have object lock enabled to prevent log files from being changed or deleted.

Measures for ensuring system configuration, including default configuration

System configuration is tracked. Each version is stored to enable version comparison and allow for restore.

Measures for internal IT and IT security governance and management

We use a threat detection service to continuously monitor for intrusions. We also have a quarterly review process internally where we review access. Access to the cloud infrastructure requires a documented access request and approval from management prior to access provisioning. A patch management process exists to confirm that operating system level vulnerabilities for workstations are remediated in a timely manner. Workstations are configured through the mobile device management solution to download and install the latest software updates available. Access to the cloud infrastructure requires a documented access request and approval from management prior to access provisioning.

Measures for certification/assurance of processes and products

We have our SOC2 Type 2 attestation in place and are in the process of obtaining ISO 27001

Measures for ensuring data minimisation

We follow principles of data minimisation and only collect information that is required for processing.

Measures for ensuring data quality

Data is captured through forms which check for predefined rules and validation. Only users with the right permissions can perform operations on the data.

Measures for ensuring limited data retention

A formal data retention and disposal policy and procedures are in place to guide the secure retention and disposal of information. All active customer data shall be retained for as long as the customer continues to be an active customer of Oro Labs or unless the active customer has requested the deletion of data.

Measures for ensuring accountability

All actions are logged and there are no shared accounts.

Measures for allowing data portability and ensuring erasure

Data can be exported upon request and is deleted upon termination.

For transfers to (sub-) processors, also describe the specific technical and organizational measures to be taken by the (sub-) processor to be able to provide assistance to the controller and, for transfers from a processor to a sub-processor, to the data exporter

Data retention is defined between subprocessors and Oro Labs. Grunenthal can contact Oro Labs for any requests related to our subprocessors.

ANNEX III

EXPLANATORY NOTE: This Annex must be completed in case of the specific authorisation of sub-processors (Clause 9(a), Option 1). The controller has authorized the use of the following sub-processors:

List of ORO Sub-Processors

Last updated June 2023

Sub-Processor	Place of Data Processing	Data Subject & nature of the processing	Legal basis for Data transfer to Sub-Processor	Scope of use
(Company Name, Company Address, Website of the sub-processor)	Country/ jurisdiction	Description of service / work	IS DPA in Place?	Default or Customer Opt-in
Workato, Inc https://www.workato.com/ Mountain View, CA 94041	US	Embedded integration platform for configuring connection with other external systems like customer's ERP or external data sources	Yes	Not used by default for every use case. Used only for integration.
Auth0, Inc. https://auth0.com Redmond WA 98052	US	SSO for User Login	Yes	Default
ThoughtSpot https://www.thoughtspot.com/ Mountain View CA 94041	US	Reporting, Analytics, Dashboarding.	Yes	Default
Stream.io Inc https://getstream.io/ Boulder CO, 80302	US	In- product collaboration for users	Yes	Default
Google Inc. https://cloud.google.com/ 1600 Amphitheatre Parkway, Mountain View CA 94043	US	Eg Google Vision (OCR) [2] Google Translation, Google Maps, Google Places	Online DPA	Depends on the customer use case
Amazon Web Services, Inc. https://aws.amazon.com/ Seattle, WA 98109	US	Cloud Infrastructure Services	Online DPA	Default
Optimizely, Inc. https://www.optimizely.com/ New York, NY 10003	US	AB Testing & Feature Toggle	Yes	Default
Autoscribe Corporation http://www.autoscribe.com 2276 San Jose Blvd Suite 624; Jacksonville FL 32223	US	Business Entity Verification API • Supplier - Legal name & Tax ID • OFAC/ AML/ Sanctions checks • Bank Account verification	Yes	Depends on the customer use case
SEON Technologies www.seon.io Austin, TX, USA	US	Supplier contact email & website domain validation	Yes	Depends on the customer use case
CDQ www.cdq.com CDQ AG, Lukasstraße 4, 9008 St. Gallen, Switzerland	EU	Business Entity Verification API for suppliers	Yes	Depends on the customer use case
Fonoa www.fonoa.com Dublin 4, D04TR29, Ireland	EU	Business Entity Verification API for suppliers	Yes	Depends on the customer use case
Middesk www.middesk.com San Francisco, CA 94105, USA	US	Business Entity Verification API for suppliers	Yes	Depends on the customer use case



Questionnaire

for Data Importers pursuant to Commission Decision 2010/87/EU of 5 February 2010 as amended by the Commission Implementation Decision (EU) 2016/2297 of 16 December 2016 or pursuant to Commission Decisions 2004/915/EC of 27 December 2004 and Decision 2001/497/EC

Preamble

In its Judgement of 16 July 2020 (C-311/18), the European Court of Justice has clarified legal conditions for the transfer of personal data. The Court has emphasized the obligations of Data Exporters and Data Importers to satisfy themselves that the Data Importer is able to process personal data that it receives from the Data Exporter under conditions that are adequate when measured against standards set by the EU General Data Protection Regulation (GDPR).

As your company intends to conduct or is already conducting business with us (also referred to as “the data exporter”) involving the processing of personal data which you will receive as a Data Importer under the EU Standard Contractual Clauses, we urgently seek clarification of the following questions. **Please note that these questions must be answered also with regard to any affiliates or sub-processors that your company will use in order to process the personal data you receive from us.**

Name of the Data Importer: **Oro Labs, Inc.**

I. Questions for US-based Data Importers

If you are a US-based company, please answer the following questions. If you are not an US-based company, please proceed to section II. However, if you use sub-processors in the US, please also answer these questions with regards to them.

1. Direct Application of 50 U.S.C. § 1881a (= FISA 702)

- a. Do you or any other relevant US entity (controller or processor) that processes or has access to personal data that is transferred to you fall under one of the following definitions in 50 U.S.C. § 1881(b)(4), that could render you or the other entit(ies) directly subject to 50 U.S.C. § 1881a (= FISA 702)?

☐ Yes

☒ No

☐ We are under a legal obligation not to answer this question

Especially,

are you or any other relevant US entity a telecommunications carrier, as that term is defined in section 153 of title 47 U.S.C.;



- ☐ Yes
- ☒ No
- ☐ We are under a legal obligation not to answer this question

b. are you or any other relevant US entity a **provider of electronic communication service**, as that term is defined in section 2510 of title 18 U.S.C.;

- ☐ Yes
- ☒ No
- ☐ We are under a legal obligation not to answer this question

c. are you or any other relevant US entity a provider of a **remote computing service**, as that term is defined in section 2711 of title 18 U.S.C.;

- ☐ Yes
- ☒ No
- ☐ We are under a legal obligation not to answer this question

d. or are you or any other relevant US entity **an officer, employee, or agent** of an entity described in a, b or c?

- ☐ Yes
- ☒ No
- ☐ We are under a legal obligation not to answer this question

2. Processing under EO 12.333

a. Do you, or any other relevant US entity (controller or processor) that processes personal data that is transferred from us to you, cooperate in any respect with US authorities conducting surveillance of communications under EO 12.333, should this be mandatory or voluntary?

- ☐ Yes
- ☒ No
- ☐ We are under a legal obligation not to answer this question

Data will be in the EU data center.

3. Other relevant Laws

a. Are you or any other relevant US entity (controller or processor) that processes personal data that is transferred from us to you subject to any other law that could be seen as undermining the protection of personal data under the GDPR (Article 44 GDPR)?



☐ Yes

☒ No

☐ We are under a legal obligation not to answer this question

If so, please specify these laws:

Please enter your answer:

4. Measures against Mass and Indiscriminate Processing in Transit (FISA 702 and EO 12.333)

As the Court of Justice has also highlighted the need to ensure that personal data is not subject to mass surveillance in transit, we seek the following clarifications:

- a. Have you (and all your sub-processors) implemented appropriate technical and organizational measures (see Article 32 GDPR) for every step of the processing operations which ensure that mass and indiscriminate processing of personal data by or on behalf of authorities in transit (such as under the “Upstream” program in the US) is made impossible?

☒ Yes

☐ No

☐ We are under a legal obligation not to answer this question

If so, please specify which technical and organizational measures (including encryption) have been taken so that neither content nor meta data can be processed by sophisticated state actors with direct access to the internet backbone, switches, hubs, cables and alike:

Please enter your answer. We use TLS 1.2 to encrypt data in transit and AES 256 bit encryption to secure data at rest, access controls

5. EU Representative

Have you appointed a representative according to Art. 27 (1) GDPR?

☒ Yes

☐ No

If yes, please provide name and contact details of the representative:

DP-Dock GmbH, Ballindam 39, 20095 Hamburg, Germany (“EU representative”) as well as DP Data Protection Services UK Ltd., 16 Great Queen Street, Covent Garden, London, WC2B 5AH, United Kingdom (“UK representative”), jointly “DP Dock”



6. Cloud Act

If you are a US-based company hosting data on servers in outside of the United States, please address the following the questions.

- a. The CLOUD Act provides affected companies with opportunities to challenge requests by US agencies.

Are you going to challenge any warrant under the Stored Communications Act requesting information on non-US-persons based on your right set down in the CLOUD Act?

☒ Yes

☐ No

☐ We are under a legal obligation not to answer this question

Are you going to inform the government of the EU member state in which the data is stored that the US government requested access to your servers?

☒ Yes

☐ No

☐ We are under a legal obligation not to answer this question

The data will be stored in EU data centers

- b. b The CLOUD Act is encryption neutral. Therefore, the US Government does not force you to decrypt information nor does it prevent you from decrypting information for the US Government. Do you assure that encrypted data provided by us will not be decrypted on behalf of US law enforcement agencies?

☒ Yes

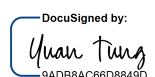
☐ No

☐ We are under a legal obligation not to answer this question

Date:

Name and title of responsible person at the Data Importer

Yuan Tung, Co-founder & CTO

DocuSigned by:

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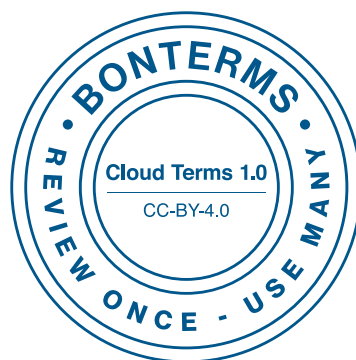
Signature 7/26/2023



Cover Page

Additional Terms Toolkit

Bonterms Cloud Terms (Version 1.0)



1. The Agreement. The Bonterms Cloud Terms are standardized terms for use of cloud services. To use the Bonterms Cloud Terms, Customer and Provider complete and execute a Cover Page that specifies Key Terms, Attachments (such as a Support Policy or Data Protection Addendum) and any Additional Terms. Collectively, the Bonterms Cloud Terms, Cover Page and any Orders form the parties' agreement ("**Agreement**"). Conflicts between parts of the Agreement are governed by Section 22.5 (Order of Precedence).

2. Cloud Service. Subject to this Agreement, Customer may use the Cloud Service for its own business purposes during each Subscription Term ("**Permitted Use**"). This includes the right to copy and use the Provider Software (if any) and Documentation as part of Customer's Permitted Use. Customer will comply with the Documentation in using the Cloud Service.

3. Users. Customer may permit Users to use the Cloud Service on its behalf. Customer is responsible for provisioning and managing its User accounts, for its Users' actions through the Cloud Service and for their compliance with this Agreement. Customer will ensure that Users keep their login credentials confidential and will promptly notify Provider upon learning of any compromise of User accounts or credentials.

4. Affiliates. Customer's Affiliates may serve as Users under this Agreement. Alternatively, Customer's Affiliates may enter into their own Orders as mutually agreed with Provider, which creates a separate agreement between each such Affiliate and Provider incorporating this Agreement with the Affiliate treated as "Customer". Neither Customer nor any Customer Affiliate has any rights under each other's separate agreement with Provider, and breach or termination of any such separate agreement affects only that agreement.

5. Data.

5.1. Use of Customer Data. Subject to this Agreement, Provider will access and use Customer Data solely to provide and maintain the

includes sharing Customer Data as Customer directs through the Cloud Service, but Provider will not otherwise disclose Customer Data to third parties except as permitted in this Agreement.

5.2. Security. Provider will implement and maintain the **Security Measures** identified on the Cover Page. If no Security Measures are identified, Provider will use appropriate technical and organizational measures designed to prevent unauthorized access, use, alteration or disclosure of Customer Data.

5.3. DPA. The parties will adhere to the **Data Protection Addendum (DPA)**, if any, identified on the Cover Page.

5.4. Usage Data. Provider may collect Usage Data and use it to operate, improve and support the Cloud Service and for other lawful business purposes, including benchmarking and reports. However, Provider will not disclose Usage Data externally unless it is (a) de-identified so that it does not identify Customer, its Users or any other person and (b) aggregated with data across other customers.

6. Mutual Compliance with Laws. Each party will comply with all Laws that apply to its performance under this Agreement.

7. Support and SLA.

7.1. Support. Provider will provide Support for the Cloud Service as described in the **Support Policy** on the Cover Page. If no Support Policy is identified, Provider will provide Support for the Cloud

7.2. SLA. Provider will adhere to the **Service Level Agreement (SLA)** identified on the Cover Page. If no SLA is identified, Provider will use commercially reasonable efforts to make the Cloud Service available for Customer's use 99.9% of the time in each month.

8. Warranties.

8.1. Mutual Warranties. Each party represents and warrants that:

(a) it has the legal power and authority to enter into this Agreement, and

(b) it will use industry-standard measures to avoid introducing Viruses into the Cloud Service.

8.2. Additional Provider Warranties. Provider warrants that:

(a) the Cloud Service will perform materially as described in the Documentation and Provider will not materially decrease the overall functionality of the Cloud Service during a Subscription Term (the "**Performance Warranty**"), and

(b) any Professional Services will be provided in a professional and workmanlike manner (the "**Professional Services Warranty**").

8.3. Warranty Remedy. Provider will use reasonable efforts to correct a verified breach of the Performance Warranty or Professional Services Warranty reported by Customer. If Provider fails to do so within 30 days after Customer's warranty report ("**Fix Period**"), then either party may terminate the Order as relates to

the terminated portion of the Subscription Term (for the Performance Warranty) or for the non-conforming Professional Services (for the Professional Services Warranty). To receive these remedies, Customer must report a breach of warranty in reasonable detail within 30 days after discovering the issue in the Cloud Service or 30 days after delivery of the relevant Professional Services ("**Claim Period**"). These procedures are Customer's exclusive remedies and Provider's sole liability for breach of the Performance Warranty or Professional Services Warranty.

8.4. Disclaimers. Except as expressly set out in this Agreement, each party disclaims all warranties, whether express, implied, statutory or otherwise, including warranties of merchantability, fitness for a particular purpose, title and noninfringement. Provider's warranties in this Section 8 do not apply to issues arising from Third Party Platforms or misuse or unauthorized modifications of the Cloud Service. These disclaimers apply to the full extent permitted by Law.

9. Usage Rules.

9.1. Compliance. Customer (a) will comply with any **Acceptable Use Policy (AUP)** identified on the Cover Page and (b) represents and warrants that it has all rights necessary to use Customer Data with the Cloud Service and grant Provider the rights to Customer Data specified in this Agreement, without violating third-party intellectual property, privacy or other rights. Between the parties, Customer is responsible for the content and accuracy of Customer Data.

9.2. High Risk Activities & Sensitive Data. Customer:

(b) will not submit Sensitive Data to the Cloud Service, and

(c) acknowledges that the Cloud Service is not designed for (and Provider has no liability for) use prohibited in this Section 9.2.

9.3. Restrictions. Customer will not and will not permit anyone else to: (a) sell, sublicense, distribute or rent the Cloud Service (in whole or part), grant non-Users access to the Cloud Service or use the Cloud Service to provide a hosted or managed service to others, (b) reverse engineer, decompile or seek to access the source code of the Cloud Service, except to the extent these restrictions are prohibited by Laws and then only upon advance notice to Provider, (c) copy, modify, create derivative works of or remove proprietary notices from the Cloud Service, (d) conduct security or vulnerability tests of the Cloud Service, interfere with its operation or circumvent its access restrictions or (e) use the Cloud Service to develop a product that competes with the Cloud Service.

10. Third-Party Platforms. Customer may choose to enable integrations or exchange Customer Data with Third-Party Platforms. Customer's use of a Third-Party Platform is governed by its agreement with the relevant provider, not this Agreement, and Provider is not responsible for Third-Party Platforms or how their providers use Customer Data.

11. Professional Services. Provider will perform Professional Services as described in an Order or Statement of Work, which may identify additional terms or milestones for the Professional Services. Customer will give Provider timely access to Customer Materials reasonably needed for Professional Services, and Provider will use

Customer will reimburse Provider's reasonable travel and lodging expenses incurred in providing Professional Services. Customer may use code or other deliverables that Provider furnishes as part of Professional Services only in connection with Customer's authorized use of the Cloud Service under this Agreement.

12. Fees.

12.1. Payment. Customer will pay the fees described in the Order. Unless the Order states otherwise, all amounts are due within 30 days after the invoice date (the "**Payment Period**"). Late payments are subject to a charge of 1.5% per month or the maximum amount allowed by Law, whichever is less. All fees and expenses are non-refundable except as expressly set out in this Agreement.

12.2. Taxes. Customer is responsible for any sales, use, GST, value-added, withholding or similar taxes or levies that apply to its Orders, whether domestic or foreign ("**Taxes**"), other than Provider's income tax. Fees and expenses are exclusive of Taxes.

12.3. Payment Disputes. If Customer disputes an invoice in good faith, it will notify Provider within the Payment Period and the parties will seek to resolve the dispute over a 15-day discussion period. Customer is not required to pay disputed amounts during the discussion period, but will timely pay all undisputed amounts. After the discussion period, either party may pursue any available remedies.

13. Suspension. Provider may suspend Customer's access to the Cloud Service and related services due to a Suspension Event, but

required to give prior notice in exigent circumstances or for a suspension made to avoid material harm or violation of Law. Once the Suspension Event is resolved, Provider will promptly restore Customer's access to the Cloud Service in accordance with this Agreement. "**Suspension Event**" means (a) Customer's account is 30 days or more overdue, (b) Customer is in breach of Section 9 (Usage Rules) or (c) Customer's use of the Cloud Service risks material harm to the Cloud Service or others.

14. Term and Termination.

14.1. Subscription Terms. Each **Subscription Term** will last for an initial 12-month period unless the Order states otherwise. Each Subscription Term will renew for successive periods unless (a) the parties agree on a different renewal Order or (b) either party notifies the other of non-renewal at least 30 days prior to the end of the current Subscription Term.

14.2. Term of Agreement. This Agreement starts on the **Effective Date** and continues until the end of all Subscription Terms, unless sooner terminated in accordance with its terms. If no Subscription Term is in effect, either party may terminate this Agreement for any or no reason with notice to the other party.

14.3. Termination. Either party may terminate this Agreement (including all Subscription Terms) if the other party (a) fails to cure a material breach of this Agreement within 30 days after notice, (b) ceases operation without a successor or (c) seeks protection under a bankruptcy, receivership, trust deed, creditors' arrangement,

14.4. Data Export & Deletion.

(a) During a Subscription Term, Customer may export Customer Data from the Cloud Service (or Provider will otherwise make the Customer Data available to Customer) as described in the Documentation.

(b) After termination or expiration of this Agreement, within 60 days of request, Provider will delete Customer Data and each party will delete any Confidential Information of the other in its possession or control.

(c) Nonetheless, the recipient may retain Customer Data or Confidential Information in accordance with its standard backup or record retention policies or as required by Law, subject to Section 5.2 (Security), Section 18 (Confidentiality) and any DPA.

14.5. Effect of Termination.

(a) Customer's right to use the Cloud Service, Support and Professional Services will cease upon any termination or expiration of this Agreement, subject to this Section 14.

(b) The following Sections will survive expiration or termination of this Agreement: 5.4 (Usage Data), 8.4 (Disclaimers), 9 (Usage Rules), 12.1 (Payment) (for amounts then due), 12.2 (Taxes), 14.4 (Data Export & Deletion), 14.5 (Effect of Termination), 15 (Intellectual Property), 16 (Limitations of Liability), 17 (Indemnification), 18 (Confidentiality), 19 (Required Disclosures), 22 (General Terms) and 23 (Definitions).

other remedies a party may have.

15. Intellectual Property.

15.1. Reserved Rights. Neither party grants the other any rights or licenses not expressly set out in this Agreement. Except for Provider's express rights in this Agreement, as between the parties, Customer retains all intellectual property and other rights in Customer Data and Customer Materials provided to Provider. Except for Customer's express rights in this Agreement, as between the parties, Provider and its licensors retain all intellectual property and other rights in the Cloud Service, Professional Services deliverables and related Provider technology.

15.2. Feedback. If Customer gives Provider feedback regarding improvement or operation of the Cloud Service, Support or Professional Services, Provider may use the feedback without restriction or obligation. All feedback is provided "AS IS" and Provider will not publicly identify Customer as the source of feedback without Customer's permission.

16. Limitations of Liability.

16.1. General Cap. Each party's entire liability arising out of or related to this Agreement will not exceed the General Cap.

16.2. Consequential Damages Waiver. Neither party will have any liability arising out of or related to this Agreement for indirect, special, incidental, reliance or consequential damages or damages for loss of use, lost profits or

16.3. Exceptions and Enhanced Cap. Sections 16.1 (General Cap) and 16.2 (Consequential Damages Waiver) will not apply to Enhanced Claims or Uncapped Claims. For all Enhanced Claims, each party's entire liability will not exceed the Enhanced Cap.

16.4. Nature of Claims. The waivers and limitations in this Section 16 apply regardless of the form of action, whether in contract, tort (including negligence), strict liability or otherwise and will survive and apply even if any limited remedy in this Agreement fails of its essential purpose.

16.5. Liability Definitions. The following definitions apply unless modified on the Cover Page.

"Enhanced Cap" means three times (3x) the General Cap.

"Enhanced Claims" means Provider's breach of Section 5.2 (Security) or either party's breach of Section 5.3 (DPA).

"General Cap" means amounts paid or payable by Customer to Provider under this Agreement in the 12 months immediately preceding the first incident giving rise to liability.

"Uncapped Claims" means (a) the indemnifying party's obligations under Section 17 (Indemnification), (b) either party's infringement or misappropriation of the other party's intellectual property rights, (c) any breach of Section

Law.

17. Indemnification.

17.1. Indemnification by Provider. Provider, at its own cost, will defend Customer from and against any Provider-Covered Claims and will indemnify and hold harmless Customer from and against any damages or costs awarded against Customer (including reasonable attorneys' fees) or agreed in settlement by Provider resulting from the Provider-Covered Claims.

17.2. Indemnification by Customer. Customer, at its own cost, will defend Provider from and against any Customer-Covered Claims and will indemnify and hold harmless Provider from and against any damages or costs awarded against Provider (including reasonable attorneys' fees) or agreed in settlement by Customer resulting from the Customer-Covered Claims.

17.3. Indemnification Definitions. The following definitions apply unless modified on the Cover Page.

"Customer-Covered Claim" means a third-party claim arising from Customer's breach or alleged breach of Section 9.1 (Compliance) or 9.2 (High-Risk Activities & Sensitive Data).

this Agreement, infringes or misappropriates a third party's intellectual property rights.

17.4. Procedures. The indemnifying party's obligations in this Section 17 are subject to receiving from the indemnified party: (a) prompt notice of the claim (but delayed notice will only reduce the indemnifying party's obligations to the extent it is prejudiced by the delay), (b) the exclusive right to control the claim's investigation, defense and settlement and (c) reasonable cooperation at the indemnifying party's expense. The indemnifying party may not settle a claim without the indemnified party's prior approval if settlement would require the indemnified party to admit fault or take or refrain from taking any action (except regarding use of the Cloud Service when Provider is the indemnifying party). The indemnified party may participate in a claim with its own counsel at its own expense.

17.5. Mitigation. In response to an infringement or misappropriation claim, if required by settlement or injunction or as Provider determines necessary to avoid material liability, Provider may: (a) procure rights for Customer's continued use of the Cloud Service, (b) replace or modify the allegedly infringing portion of the Cloud Service to avoid infringement, without reducing the Cloud Service's overall functionality or (c) terminate the affected Order and refund to Customer any pre-paid, unused fees for the terminated portion of the Subscription Term.

of the Cloud Service, (b) use of the Cloud Service in combination with items not provided by Provider, including Third-Party Platforms or (c) Provider Software other than the most recent release, if Provider made available (at no additional charge) a newer release that would avoid infringement.

17.7. Exclusive Remedy. **This Section 17 sets out the indemnified party's exclusive remedy and the indemnifying party's sole liability regarding third-party claims of intellectual property infringement or misappropriation covered by this Section 17.**

18. Confidentiality.

18.1. Use and Protection. As recipient, each party will (a) use Confidential Information only to fulfill its obligations and exercise its rights under this Agreement, (b) not disclose Confidential Information to third parties without the discloser's prior approval, except as permitted in this Agreement and (c) protect Confidential Information using at least the same precautions recipient uses for its own similar information and no less than a reasonable standard of care.

18.2. Permitted Disclosures. The recipient may disclose Confidential Information to its employees, agents, contractors and other representatives having a legitimate need to know (including, for Provider, the subcontractors referenced in Section 22.10), provided it remains responsible for their compliance with this Section 18 and they are bound to confidentiality obligations no less protective than this Section 18.

public knowledge through no fault of the recipient, (b) it rightfully knew or possessed, without confidentiality restrictions, prior to receipt from the discloser, (c) it rightfully received from a third party without confidentiality restrictions or (d) it independently developed without using or referencing Confidential Information.

18.4. Remedies. Breach of this Section 18 may cause substantial harm for which monetary damages are an insufficient remedy. Upon a breach of this Section, the discloser is entitled to seek appropriate equitable relief, including an injunction, in addition to other remedies.

19. Required Disclosures. The recipient may disclose Confidential Information (including Customer Data) to the extent required by Laws. If permitted by Law, the recipient will give the discloser reasonable advance notice of the required disclosure and reasonably cooperate, at the discloser's expense, to obtain confidential treatment for the Confidential Information.

20. Publicity. Neither party may publicly announce this Agreement without the other party's prior approval or except as required by Laws.

21. Trials and Betas. Provider may offer optional Trials and Betas. Use of Trials and Betas is permitted only for Customer's internal evaluation during the period designated by Provider on the Order (or if not designated, 30 days). Either party may terminate Customer's use of Trials and Betas at any time for any reason. Trials and Betas may be inoperable, incomplete or include features never released. **Notwithstanding anything else in this Agreement,**

exceed US\$1,000.

22. General Terms.

22.1. Assignment. Neither party may assign this Agreement without the prior consent of the other party, except that either party may assign this Agreement, with notice to the other party, in connection with the assigning party's merger, reorganization, acquisition or other transfer of all or substantially all of its assets or voting securities. Any non-permitted assignment is void. This Agreement will bind and inure to the benefit of each party's permitted successors and assigns.

22.2. Governing Law and Courts. The **Governing Law** governs this Agreement and any action arising out of or relating to this Agreement, without reference to conflict of law rules. The parties will adjudicate any such action in the **Courts** and each party consents to the exclusive jurisdiction and venue of the **Courts** for these purposes.

22.3. Notices.

(a) Except as set out in this Agreement, notices, requests and approvals under this Agreement must be in writing to the addresses on the Cover Page and will be deemed given: (1) upon receipt if by personal delivery, (2) upon receipt if by certified or registered U.S. mail (return receipt requested), (3) one day after dispatch if by a commercial overnight delivery or (4) upon delivery if by email. Either party may update its address with notice to the other.

22.4. Entire Agreement. This Agreement is the parties' entire agreement regarding its subject matter and supersedes any prior or contemporaneous agreements regarding its subject matter. In this Agreement, headings are for convenience only and "including" and similar terms are to be construed without limitation. Excluding Orders, terms in business forms, purchase orders or quotes used by either party will not amend or modify this Agreement; any such documents are for administrative purposes only. This Agreement may be executed in counterparts (including electronic copies and PDFs), each of which is deemed an original and which together form one and the same agreement.

22.5. Order of Precedence. First any Additional Terms and then Attachments will control in any conflict with these Bonterms Cloud Terms. An Order may not modify any other part of the Agreement unless the Order specifically identifies the provisions that it supersedes.

22.6. Amendments. Any amendments to this Agreement must be in writing and signed by each party's authorized representatives.

22.7. Operational Changes. With notice to Customer, Provider may modify the **Support Policy, SLA** or **Security Measures** to reflect new features or changing practices, but the modifications may not be retroactive or materially decrease Provider's overall obligations during a Subscription Term.

22.8. Waivers and Severability. Waivers must be signed by the waiving party's authorized representative and cannot be implied

necessary so the rest of this Agreement remains in effect.

22.9. Force Majeure. Neither party is liable for a delay or failure to perform this Agreement due to a Force Majeure. If a Force Majeure materially adversely affects the Cloud Service for 15 or more consecutive days, either party may terminate the affected Order(s) upon notice to the other and Provider will refund to Customer any pre-paid, unused fees for the terminated portion of the Subscription Term. However, this Section does not limit Customer's obligations to pay fees owed.

22.10. Subcontractors. Provider may use subcontractors and permit them to exercise its rights and fulfill its obligations, but Provider remains responsible for their compliance with this Agreement and for its overall performance under this Agreement. This does not limit any additional terms for subprocessors under a DPA.

22.11. Independent Contractors. The parties are independent contractors, not agents, partners or joint venturers.

22.12. No Third-Party Beneficiaries. There are no third-party beneficiaries to this Agreement.

22.13. Open Source. Provider Software distributed to Customer (if any) may include third-party open source software ("**Open Source**") as listed in the Documentation or by Provider upon request. If Customer elects to use the Open Source on a stand-alone basis, that use is subject to the applicable Open Source license and not this Agreement.

that it is not listed on any U.S. government list of prohibited or restricted parties or located in (or a national of) a country subject to a U.S. government embargo or designated by the U.S. government as a “terrorist supporting” country. Customer will not submit to the Cloud Service any data controlled under the U.S. International Traffic in Arms Regulations.

22.15. Government Rights. To the extent applicable, the Cloud Service is “commercial computer software” or a “commercial item” for purposes of FAR 12.212 for and DFARS 227.7202. Use, reproduction, release, modification, disclosure or transfer of the Cloud Service is governed solely by the terms of this Agreement, and all other use is prohibited.

23. Definitions.

“Acceptable Use Policy” or **“AUP”** is defined in Section 9.1 (Compliance).

“Additional Terms” means any additions to or modifications of these Bonterms Cloud Terms that the parties specify on the Cover Page.

“Affiliate” means an entity controlled, controlling or under common control with a party, where control means at least 50% ownership or power to direct an entity’s management.

“Agreement” has the meaning given in Section 1 (The Agreement).

“Attachments” means any attachments, policies or documents that the parties specify on the Cover Page.

“Cloud Service” means Provider’s proprietary cloud service, as identified in the relevant Order and as modified from time to time. The Cloud Service includes the Provider Software and Documentation but not Professional Services deliverables or Third-Party Platforms.

“Confidential Information” means information disclosed by or on behalf of one party (as discloser) to the other party (as recipient) under this Agreement, in any form, which (a) the discloser identifies to recipient as “confidential” or “proprietary” or (b) should be reasonably understood as confidential or proprietary due to its nature and the circumstances of its disclosure. Provider’s Confidential Information includes technical or performance information about the Cloud Service, and Customer’s Confidential Information includes Customer Data. Information on the Cover Page is each party’s Confidential Information.

“Cover Page” means a Bonterms cover page or other document that (a) incorporates these Bonterms Cloud Terms by reference, (b) specifies the Key Terms and any Additional Terms and incorporates any Attachments and (c) is signed by Customer and Provider.

“Customer” means the party identified as “Customer” on the Cover Page.

“Customer Data” means any data, content or materials that Customer (including its Users) submits to its Cloud Service accounts, including from Third-Party Platforms.

Professional Services.

“Data Protection Addendum” or **“DPA”** is defined in Section 5.3 (DPA).

“Documentation” means Provider’s standard usage documentation for the Cloud Service.

“Force Majeure” means an unforeseen event beyond a party’s reasonable control, such as a strike, blockade, war, pandemic, act of terrorism, riot, third-party Internet or utility failure, refusal of government license or natural disaster, where the affected party takes reasonable and customary measures to avoid or mitigate such event’s effects.

“High Risk Activities” means activities where use or failure of the Cloud Service could lead to death, personal injury or environmental damage, including life support systems, emergency services, nuclear facilities, autonomous vehicles or air traffic control.

“Key Terms” means Effective Date, Governing Law, Courts or other terms specified by the parties as “Key Terms” on the Cover Page.

“Laws” means all laws, regulations, rules, court orders or other binding requirements of a government authority that apply to a party.

“Order” means an order for Customer’s access to the Cloud Service, Support, Professional Services or related services that is executed by the parties and references this Agreement.

“Professional Services” means training, migration or other professional services that Provider furnishes to Customer related to the Cloud Service.

“Provider” means the party identified as “Provider” on the Cover Page.

“Provider Software” means any proprietary apps or software that Provider distributes to Customer as part of the Cloud Service.

“Sensitive Data” means (a) patient, medical or other protected health information regulated by the Health Insurance Portability and Accountability Act (as amended and supplemented) (“**HIPAA**”), (b) credit, debit, bank account or other financial account numbers, (c) social security numbers, driver’s license numbers or other government ID numbers and (d) special categories of data enumerated in European Union Regulation 2016/679, Article 9(1) or any successor legislation.

“Service Level Agreement” or “**SLA**” is defined in Section 7.2 (SLA).

“Statement of Work” means a statement of work for Professional Services that is executed by the parties and references this Agreement.

“Subscription Term” means the term for Customer’s use of the Cloud Service as identified in an Order.

“Support” means support for the Cloud Service as described in Section 7.1 (Support).

Third-Party Platform means any product, app or platform not provided by Provider that Customer uses with the Cloud Service.

“Trials and Betas” mean access to the Cloud Service (or Cloud Service features) on a free, trial, beta or early access basis.

“Usage Data” means Provider’s technical logs, data and learnings about Customer’s use of the Cloud Service, but excluding Customer Data.

“User” means anyone that Customer allows to use its accounts for the Cloud Service, who may include (a) employees, advisors and contractors of Customer and its Affiliates and (b) others if permitted in this Agreement, the Documentation or an Order.

“Virus” means viruses, malicious code or similar harmful materials.

Bonterms Cloud Terms (Version 1.0)

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Bonterms Service Level Agreement (Version 1.0)

Attachment to Bonterms Cloud Terms

How to Use: This Bonterms Service Level Agreement (Version 1.0) (“**SLA**”) operates as an Attachment to the Bonterms Cloud Terms. To use this SLA, Customer and Provider incorporate this SLA by reference on their Cover Page. The parties may modify any element of this SLA, including the SLA Key Terms Chart (see Section 7 below), by reference on their Cover Page. Capitalized terms not defined in this SLA have the meanings given in the Bonterms Cloud Terms.

- 1. Service Levels.** Provider will use commercially reasonable efforts to provide the Cloud Service at or above Target Availability.
- 2. Monitoring.** Provider will provide or otherwise make available to Customer, upon request, reports measuring the Monthly Uptime Percentage as against Target Availability.
- 3. Service Credits.** If there is a verified failure of the Cloud Service to meet Target Availability in a particular month and Customer makes a request for service credit within 30 days after the end of such month, Customer will be entitled to a Service Credit calculated in accordance with the SLA Key Terms Chart below. Provider will apply each Service Credit to Customer’s next invoice, provided that Customer’s account is fully paid up (without outstanding payment issues or disputes). Customer will receive no refund or other credit for unused Service Credits.
- 4. Multiple Failures.** To the extent that the Cloud Service experiences Multiple Failures, then Customer may, upon notice to Provider no more than 30 days after the date the Multiple Failures occurred, terminate the Order for the applicable Cloud Service. In such case Provider will refund to Customer any pre-paid, unused fees for the terminated portion of the Subscription Term.
- 5. Exclusive Remedies.** Service Credits constitute liquidated damages and are not a penalty. Service Credits and the Multiple Failures termination right set forth in Section 4 above are Customer’s exclusive remedies, and Provider’s sole liability, for Provider’s failure to meet Target Availability.
- 6. Definitions.**

“**Maintenance**” means Provider’s routine maintenance of the Cloud Service conducted in accordance with its Maintenance Procedures or reasonable emergency maintenance.

“**Maintenance Procedures**” means Provider’s standard Cloud Service maintenance schedule as posted or otherwise made available by Provider upon request by Customer.

“**Monthly Uptime Percentage**” means the number of minutes the Cloud Service is accessible and not subject to an Outage during a calendar month divided by the total number of minutes in that calendar month.

“**Multiple Failures**” is defined in the SLA Key Terms Chart.

“**Outage**” means an unplanned interruption or material disruption of the Cloud Service, but excluding unavailability to the extent caused by (a) Customer’s use of the Cloud Service in a manner not authorized in the Agreement or Documentation, (b) general Internet problems, Force Majeure events or other factors outside of Provider’s reasonable control, (c) Customer’s network connections or other infrastructure or (d) Maintenance.

“**Service Credit**” means a credit issued by Provider based on the monthly fees due for the affected Cloud Service in such month.

“**Target Availability**” is defined in the SLA Key Terms Chart.

7. SLA Key Terms Chart.

SLA Key Terms Chart		
	Monthly Uptime Percentage:	Service Credit:
Target Availability:	99.9% or higher	None
Credit Tier 1	99.00% - 99.89%	5% of monthly fees
Credit Tier 2	97.00% - 98.99%	20% of monthly fees
Credit Tier 3	95.00% - 96.99%	35% of monthly fees
Credit Tier 4	< 95.00%	50% of monthly fees
Multiple Failures:	means Target Availability is not met for 2 consecutive months or any 3 months in a rolling 12-month period.	

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Final Audit Report

2023-07-27

Created:	2023-07-27
By:	Steffen Heiling (steffen.heiling@grunenthal.com)
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